The Ombudsman can act either on the basis of a complaint received from the citizen against unfair administrative action or suo moto (i.e. on his/her own initiative). The authority can prosecute any erring official including the judges. However, it cannot inflict any punishment. It only reports the matter to the higher authorities for taking the necessary corrective action.

From Sweden, the institution of Ombudsman spread to other Scandinavian countries—Finland (1919), Denmark (1955) and Norway (1962). New Zealand is the first Commonwealth country in the world to have adopted the Ombudsman system in the form of a Parliamentary Commissioner for Investigation in 1962. The United Kingdom adopted Ombudsman-like institution called Parliamentary Commissioner for Administration in 1967. Since then, many other counties of the world have adopted Ombudsman-like institutions with different nomenclature and functions. The Ombudsman in India is called Lokpal/Lokayukta.

Donald. C. Rowat says that the institution of Ombudsman is a "bulkwork of democratic government against the tyranny of officialdom." While Gerald E. Caiden, a scholar of Public Administration, described the Ombudsman as "institutionalised public conscience."

Another unique institutional device created for the redressal of citizens' grievances against administrative authorities, is the French system of Administrative Courts. Due to its success in France, the system has gradually spread to various other countries of the world.

The socialist countries like the former USSR (now Russia) and China have created their own institutional device for the redressal of citizens' grievances. It is called 'Procurator System' in these countries.

Position In India

The existing legal and institutional framework to check corruption and redress citizens' grievances in India consists of the following:

- Public Servants (Enquiries) Act, 1850
- Indian Penal Code, 1860
- Special Police Establishment, 1941
- Delhi Special Police Establishment Act, 1946
- Prevention of Corruption Act, 1988
- *Benami* Transactions (Prohibition) Act, 1988
- Commissions of Inquiry Act, 1952 (against political leaders and eminent public men)
- All-India Services (Conduct) Rules, 1968
- All-India Services (Discipline and Appeal) Rules, 1969
- Central Civil Services (Conduct) Rules, 1964
- Central Civil Services (Classification, Control and Appeal) Rules, 1965
- Railway Services (Conduct) Rules, 1966